

The Head of Council

We commonly refer to the head of municipal council as “mayor,” but they could also be warden, chair, or reeve depending on the municipality. We will use the generic “mayor” term in this course.

Most mayors are directly elected, “at large” – this means that all eligible voters in the municipality get the opportunity to vote for the mayor. This also means that big city mayors are elected by more voters and have a stronger base of support than the premiers or prime minister, who are elected in a riding and become premier or prime minister because of their role as head of their party.

The exception is that the members of some upper-tier regional municipalities in Ontario select the regional chair and appoint the individual to the role.

Example – Ontario Regional Municipalities

- Durham Region was established in 1974 and, until 2014, the members of regional council had selected and appointed the chair of the regional municipality. In 2010, the Region of Durham held a referendum to ask municipal voters whether the regional chair position should be directly elected. Voter turnout wasn't high enough for the results to be binding, but there was nearly 80% support from those who voted to move to a directly elected chair. Durham Council approved a directly elected chair in 2012, and in 2014 held the first election for the chair of regional council.
- In 2016, Ontario changed the *Municipal Act* to require all regional municipalities to hold elections for the chair position. The 2018 municipal election would have included the opportunity for voters to elect directly the chairs of the regions of Niagara, Peel, York, and Muskoka.
- In July 2018, the Conservative government in Ontario passed the *Better Local Government Act*, which postponed the planned October 2018 elections for regional chairs until 2022. Some of the regions are beginning to consider, again, whether they should plan to move to direct election for the chair in 2022.

The question of directly elected heads of municipalities raises the issue of the role of the municipality – Is the municipality a democratic form of government or is its role limited to service delivery? The answer to this question can change based on politics – the Ontario Liberal government understood regional government as a form of government. However, the Ontario Conservative government viewed it as a regional service provider and coordinating body for the local municipalities, arguing that the previous “decision to add a fourth level of elected government in these regions invited dysfunction and discord. This additional level of government competes with local municipalities, who are already responsible for delivering key municipal services” (Office of the Premier, 2018).

Who Are Our Mayors?

We all have seen or heard of some high-profile and/or controversial mayors, but are they representative of the average mayor in a Canadian municipality?

1. Visit your local municipal website and learn about your mayor – age, gender, education, race/ethnicity, past experience in local politics, and past employment background.
2. When you're done, compare your findings to the results of a survey conducted in mid-sized Canadian communities with populations between 10,000 and 500,000.

Click-n-reveal: [Click here to see the survey results](#)

Characteristics of mayors in mid-sized communities, of between 10,000 and 500,000 people:

- 50% of mayors are between 51–65 years
- 81% identify as male
- 51% have a university degree
- 93% identify as Caucasian

(MayorsProject.ca, 2018, 4)

Prior to becoming mayor, 71% were employed full time, 18% part time, and 12% were not employed (MayorsProject.ca, 2018, 5).

61% of the mayors had background in the private sector, 23% in the public sector, and 7% in the nonprofit sector (MayorsProject.ca, 2018, 5).

Nearly 60% had experience serving as an elected official local government, while 4% had provincial elected experience (MayorsProject.ca, 2018, 6).

Mayors – Formal Leadership, Influence, and Authority

Pause and Reflect

Reflect what you learned about your mayor when you looked at the municipal website in the [“Who Are Our Mayors?” activity on the previous page](#).

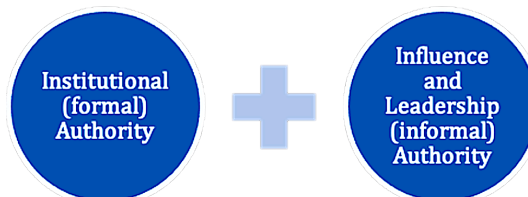
- How would you describe the mayor's leadership style and their relationship with council?
- Where do they get their support from – business, community, labour, or other interests in the community?

"Our mandates as mayors are crystal clear. Canadians expect us to cut through the noise: to tackle traffic congestion in our communities, to make their housing and their lives more affordable, to confront new climate extremes that are impact[ing] our communities and disrupting business, and to build more livable and competitive and prosperous cities," Mayor Iveson, City of Edmonton (Meyer, 2019).

Mayors have a big mandate and expectations are high from community members, businesses and other nonprofit organizations. Do mayors have the powers to match this mandate?

This visual shows the two types of power and authority – the formal institutional power

and the informal power that comes from influence, leadership, and relationships with community, political (council), and staff/administration actors (Graham, 2018, 192).



Types of power and authority

Institutional, Formal Power, and Authority

Most provinces expect the mayor to preside over council meetings, provide leadership to council, represent the municipality in the community and to external stakeholders, and promote and foster a strong municipality. These powers have been extended in some municipalities, such as in Mississauga, where the mayor is the spokesperson on policy issues; in Toronto where the *City of Toronto Act* gives the mayor authority to appoint the executive committee and deputy mayor; and in Winnipeg where the mayor can form a municipal cabinet.

Kate Graham (2018) argued that it isn't the mayors that are weak, but the structure of the mayor-council system that puts the mayor in a weak position. Mayors don't have much power relative to municipal councils. Graham distinguishes between a mayor-council system – where the mayor controls the bureaucracy – and a council-manager system where the council directs the bureaucracy (2018).

There are also some executive powers assigned to the mayor related to senior staff, but these are usually subject to confirmation by council. Winnipeg and Toronto give their mayors an enhanced role to develop their respective budgets, while the Vancouver mayor can appoint, terminate, or suspend the city manager.

Generally, the mayor acts as the chair of the council meeting, presiding over the meeting and managing – with help from municipal staff – the agenda, list of speakers, and the voting process. If the mayor wants to contribute to a discussion, they must ask the deputy mayor or another councillor to take over their role as chair so that they can contribute directly. Toronto, Montreal, and Winnipeg have addressed this challenge by adding speaker positions, similar to those at the federal and provincial/territorial levels, where one member of council is designated as the speaker of council. This frees up the mayor to play a stronger leadership role on the floor of council.

Did You Know?

Most large American cities, like New York or Chicago, have a strong mayor structure. In these cities, the mayor is the chief executive and oversees all municipal operations. Strong mayors have the power to set and administer the budget for the municipality, hire and fire senior staff, veto council decisions, and appoint chairs of committees.

In contrast, mayors of Canadian municipalities don't have a lot of formal power. They are a member of municipal council and get one vote on council. Some provinces, like British Columbia, Manitoba, and Quebec give the mayor some limited veto powers – the mayor can refer a decision back to council for reconsideration if they disagree with it – but, generally the mayor must use their influence and ability to convince other members of council to support their ideas.

There are many voices for increased powers for mayors, including Premier Ford of Ontario, who has stated a desire to bring in a “U.S.–style ‘strong-mayor’ system for cities” in Ontario (Blackwell, 2018). Only 17% of the respondents to a 2015 Ipsos Reid national survey strongly agreed that mayors had enough power to make things happen (as referenced in Graham, 2018). The perception of the power of mayors varies province to province, although residents in larger cities rated their mayors more highly in terms of power to make things happen.

However, there is also resistance to giving the mayors significant power and authority. More than half of Ontario residents surveyed in 2017 oppose or somewhat oppose a mayor having the power to prepare the municipal budget, just over half oppose a mayor having the power to hire and fire senior staff, more than 70% oppose a mayor having the power to veto council decisions (Nanos, 2018, 8 & 47).

Mayors – Informal Leadership, Influence, and Authority

Mayors in Canadian municipalities are often referred to as “weak” mayors in contrast to the “strong” mayors found in some American municipalities. What does this mean?

First, a mayor can be a strong or weak mayor based on their personal leadership attributes – no one would describe Mayor Hazel McCallion of Mississauga, Ontario, who stepped down in 2014 at the age of 93 years, as a weak mayor! You might be interested to know that Mayor McCallion was the [runner-up World Mayor in the 2005 international competition for mayors](#) with demonstrated vision, passion, and skills to make their cities amazing places to live.

Mayors build coalitions of support on council and in the community for their priorities. Mayor Jim Watson of Ottawa voted on the winning side of issues 94.1% between 2010 and 2014; and 80.4% from 2014 to 2018 (McIntosh, 2017). McIntosh referred to this ratio as the mayor's “win rate” and evidence that the mayor had built a council coalition.

A mayor can be seen as politically strong, based on the size of the municipality. As noted earlier the mayors of many of Canada's large cities have an electoral base that is bigger than that of their provincial, territorial, or federal counterparts. A mayor can also be strong based on the voting results – a mayor with 85% of voter support is stronger than a mayor with a 45% base of support. Additionally, in the limited number of municipalities with municipal political parties, mayors wield more power because they have a caucus of political allies supporting the same agenda.

Mayors are influential because they are the face or symbol of the municipality – both at home with local community members and outside the municipality with other municipalities, levels of government, organizations, and corporations.

Finally, mayors can be described as strong or weak based on their defined powers and authority in provincial or territorial municipal acts or other local government legislation. This legislation defines the mayor's executive powers in two areas – as chief executive officer of the municipality as well as related to municipal councils (Eidelman & Kelcey, 2017). While these formal descriptions exist in legislation, they are vague and unclear (Lightbody, 2006).

Pause and Reflect

On pages 231–232, Tindal et al. (2017) comment that the Ontario (Liberal) government ignored the opportunity to strengthen the position of the mayor at the time they drafted the new *Municipal Act*. Can you think of any reasons why a province or territory might not want to expand the mayor's powers?

Hint: Could it relate to the overall balance of power between the premier and the mayors and to the desire to maintain provincial or territorial control and oversight over municipalities?

Municipal Councillors

Municipalities exercise powers assigned to them by their province or territory. The municipal council is the main political institution that carries out these responsibilities. Members of municipal council are elected into office, typically for a four-year term. Most municipal councils are small, with anywhere from 5–15 members (Ontario has a minimum of five members of council including the mayor). The exceptions to this are larger cities like Montreal and Toronto; Toronto's mega-city council was reduced from 58 members to 45 members in 2000 and then to 25 in 2018.

Did You Know?

In Ontario, there are 3,270 councillors (including the mayor) on the 444 municipal councils in the province (Association of Municipalities of Ontario (AMO), 2020). Want to learn more? Check out the data [available through AMO](#) that shows the municipal population and type of municipality (other data is available in the information system).

Each province has an association of municipalities that has information on the number of municipalities as well as resources about the municipal councils in their province – for example, the [Association of Municipalities of Ontario](#), [Union of the Municipalities of New Brunswick](#), and [Association of Manitoba Municipalities](#).

The responsibilities of all members of council are defined by the province or territory in the municipal acts or other local government legislation. Municipal councils have both executive and legislative powers. This shared responsibility is unique in Canadian government and can sometimes lead to confusion and blurring of the policy-making and policy administration roles.

All members of council are elected, with the exception of some chairs of regional councils who may be appointed. In Ontario, councillors are generally elected in wards that represent sub-sections/communities in the municipality, however, smaller municipalities with lower population levels may elect councillors at large. British Columbia has at-large elections for municipal councillors.

Ward-based councillor models set up an interesting political dynamic. The mayor is elected to represent the entire city with a much broader base of support, while the councillors focus their attention and efforts on a particular geographic area. As a result, the mayor can command greater authority from the strengthened voter support. There are other characteristics in the current system that favour the mayor. For example, in many municipalities, the mayor is the only full-time elected representative, while councillors are often part-time and juggle their regular employment as well as their elected responsibilities. This can give a mayor the advantage in terms of knowledge of issues and contact with staff and the public. The mayor may be better prepared than the councillors as the mayor's position usually has a budget and can hire staff to provide support. Councillors often have to share administrative support – rarely do councillors in smaller and mid-sized municipalities have research or policy support. Finally, mayors are more visible than councillors – they are in the media, attend ribbon-cutting ceremonies, and are active in the lunch/dinner circuit.

High Expectations for Municipal Councillors

Voters have high aspirations for municipal councillors. We expect a lot from our elected councillors. How would you rate the characteristics listed in the poll below? What do you look for in a municipal councillor?

Compare your assessment to others in the class by responding to the poll, and compare both sets of results to the results of an Ontario survey.

The question of what we look for in a municipal councillor raises the question of how we understand the councillor's role. Some see an elected municipal councillor as a **delegate** who represents the community's views on issues in a council meeting and when voting. Others want the councillor to be a **trustee** and to bring their experience and values to make a decision on an issue.

Both of these roles have challenges. For example, communities are not homogenous. Whose views does a delegate councillor represent – the most vocal interests, the majority, or the marginalized? How does a delegate vote if a decision brings benefits to one part of the ward and costs or disadvantages to another part? The path is somewhat clearer for the councillor who plays a trustee role and will vote the way that they feel is best for the community. However, this raises questions about trustee accountability to the community. How are they accountable if they act based on their values and proprieties? Is election time the only point at which they are held accountable?

Council Meetings

Most councils hold regularly scheduled meetings twice a month. Each meeting may last a couple of hours – the average City of Ottawa meeting in the 2014 to 2018 term of office was 1 hour and 45 minutes long (McIntosh, 2017). But meetings can also last much longer and continue over two or sometimes three days.

Did You Know?

City of Toronto council goes through more council business and tends to spend more time on each item of business than councils in other large Canadian cities. Between December 2014 and June 2016, they held 19 meetings and voted on 1,800 items. Each meeting included an average of 96 motions (on both procedural and policy matters) that were debated for 9 minutes and 32 seconds (McCaffrey, 2016).

Councils with full-time councillors, like Toronto, begin their meetings in the morning, but councils with part-time councillors may hold late afternoon/evening meetings.

After the national anthem, land acknowledgement, and special announcements, the mayor begins by reading the number of every item and motion listed on the formal council agenda. This includes items referred from standing committees and can sometimes take a fair amount of time to work through. Councillors can call out "hold" if they wish to hold an agenda item or report for question or discussion. Items that are not held are deemed to have been approved by council – most of the council agenda items are dealt with this way. Held items may also be approved, however, they are subject to council discussion before a specific vote is taken on the item.

This process requires that councillors be prepared for the meeting – they must know in advance which items they are interested in and which items they wish to hold to speak in favour of or to address concerns or questions they have.

Council decisions are determined by majority votes. Votes can be by a show of hands; by recorded vote, where each member of council is verbally asked by the clerk for their vote on a specific issue; or by an electronic voting machine.

Council meetings are open to the public and are often live-streamed and video archived so that residents can watch them later. Municipal councils can meet behind closed doors or “in camera” for a very limited number of issues, including labour relations, property negotiations, or other matters, where discussing the issue in public would put the municipality in a weak negotiating position. Closed meetings must comply with provincial/territorial rules, set out in municipal acts, and municipalities must report publicly on the number of meetings and the reasons for the meetings. A report criticized the City of Calgary for spending 23.7% of its time in closed session in 748 meetings between 2013 and 2017, up from 19% in the previous term (Potkins, 2018). In contrast, Hamilton held 13 private meetings between 2014 and 2016, Toronto held 18 meetings in private, and Ottawa held one (Potkins, 2018).

Just over three-quarters of Ontarians prefer a municipal council that has a healthy debate, makes a decision on an issue, and puts the debate behind them and works together on the next issue (Nanos, 2018, 41). But this doesn't always happen. Municipal councils include different personalities, political agendas, and political values. There can be issues between council members and between council members and the mayor.

In Ottawa, tensions persisted in relation to the 2001 amalgamation of the urban, suburban, and rural areas into the new city of Ottawa. In 2020, a councillor proposed that the planning committee be split up and two new committees established – one to deal with urban issues and one to deal with suburban planning issues. “The Capital ward councillor [downtown Ottawa ward] believes the concerns of residents in the city's core neighbourhoods are being given short shrift by the 10-member committee, which features nine councillors from Ottawa's suburbs and rural areas” (CBC News, 2019). In another example, Councillor Menard “accuse [d the] mayor of cultivating council clique” (Gibbons, 2020) when the mayor appointed a councillor from a rural ward to fill a vacancy as chair of the transportation committee, passing over the vice-chair who represented an urban ward. “Fellow urban councillor Catherine McKenney chimed in with her own criticism of the appointment, describing it as ‘another example of the urban core being shut out of leadership positions’” (Gibbons, 2020). In 2020, the City of Ottawa initiated the first review of its ward boundaries since 2021 to determine the distribution and political balance between the urban, suburban, and rural areas of the city.

The municipal council of St. John's, Newfoundland has had a lively 20 or so years. Andy Well's term in office as mayor was marked by conflict, outbursts, insults, and personal attacks on council members. The controversial ex-mayor of St. John's announced in 2017 that he [wanted his old job back](#) as CBC reported in this video [2:01]. The ex-mayor [lost in the 2018 mayoral race against Finn, an Australian cattle dog](#) [0:36], and two city councillors.

Committees of Council

Municipal councils can establish a committee structure as part of the decision-making process, and this can change based on council priorities and needs. Council committees can be permanent or temporary/time-limited. Each municipal council must decide which committees it needs to establish and the number of members on each committee. Often there is a striking committee that has responsibility for assigning councillors to sit on each of the committees.

Each panel below provides details on various types of council committees.

Tab Panels (expanded):

Tab: Standing Committee

Most municipal councils are supported by permanent or **standing committees**. These committees, composed of councillors, focus on specific issues such as waste management, parks and recreation, human services, economic development, transportation, and planning. The standing committees are responsible for overseeing the operations of one or more departments and for making recommendations on service, spending, and policy matters to the municipal council. In addition, there are often standing committees that focus more internally on budget and finance or human resources. Issues are reviewed, discussed, and debated at the committee level and the committee makes a recommendation to city council. These recommendations are contained in the committee reports, referred to earlier in the description of the review of agenda items at a council meeting.

Committees of council have a number of benefits for municipal councils. First, they allow councillors to specialize and develop expertise in a small range of issues. Second, they generally speed up the work of council by allowing an informed committee to consider the issues and make a recommendation. Third, they are the forum in which the public can participate and directly influence local decision-making. Committee meetings are open and the public is invited to attend and speak, or depute, on any issue of interest. In many municipalities, interested residents and groups make presentations directly to standing committees on issues of interest to them. Sometimes the agenda item is referred back to staff for further research or study based on the residents' input.

As Tindal et al. point out, there are also a number of disadvantages with the committee structure. Committee discussions can delay the decision-making process – particularly when council refers a matter back to a standing committee for more discussion or research or reconsideration. On occasion, the municipal council will be very interested in the issue, and an issue discussed by a standing committee will be re-debated by the entire council, taking more time and energy. The standing committee can reinforce territoriality and departmental silos; the committee members are engaged in the business of the committee and may not always see the bigger picture. It can be hard to coordinate common issues across the

committee structure. Furthermore, long-standing committee members may lose their perspective and become immersed in details and internal operations.

Tab: Special Committee

In addition to standing committees, a council may choose to establish a **special committee** – a time-limited, issue-specific committee – to address a particular issue or problem. For example, many municipalities established special COVID pandemic recovery committees to guide their efforts.

Tab: Committee of the Whole

The **committee of the whole** is often used as an alternative to issues-based standing committees – all members of council participate in a committee-level discussion of issues and recommendations. The committee of the whole is more flexible than formal council meetings and often the chair is rotated among council members. The committee will hear deputations and receive presentations and updates from staff. The committee of the whole doesn't have decision-making authority – it must make recommendations to council, which need to be discussed at a council meeting. Sometimes the committee of the whole meets on a different day or week than council, but some municipalities integrate council and committee of the whole meetings into one session; they will officially start as council and complete their business before adjourning and moving into committee of the whole. After the committee of the whole has finished its discussion of agenda items, it will close the committee meeting, and the council meeting will resume. Council will review and make formal decisions on the recommendations from the committee of the whole.

Tab: Executive Committee

The board of control is an early example of an executive committee. It was a powerful committee – there had to be a two-thirds vote of council in favour of overturning one of its decisions. Initially introduced in Toronto in 1896, Ontario required a board of control for municipalities with more than 100,000 people.

Boards of control fell out of favour over time and there are few in existence now. Boards of control were replaced in some municipalities by an **executive committee** with broad strategic, operational, and financial oversight that would coordinate and bring focus to the municipality. Toronto has an executive committee chaired by the mayor with membership including the chairs of all the standing committees. The mayor may have authority to appoint additional members to the executive committee, as in Winnipeg and Toronto. Montreal also has an executive committee, with members having a service or program portfolio as well as some delegated decision-making authority from council for some issues.

Tab: Community Council

In the 1970s, the emphasis on neighbourhood renewal and community development led to the engagement of communities in various planning and implementation committees (Mack, 2006). There has been renewed interest in similar community mechanisms as vehicles to engage citizens in municipal government, strengthen communities, and counterbalance the centralization that accompanied large-scale municipal amalgamations.

Community councils exist in New York, Los Angeles, Sudbury (where they're known as community action networks), Montreal, and Toronto (only since the 1998 amalgamation). A number of municipalities in Ontario considered and dismissed the addition of community councils, including Hamilton and Ottawa. Winnipeg still has community committees in a handful of neighbourhoods that were formed because of the changes when the unicity was formed in the 1970s.

The original concept was to engage local community members in deliberation and local decision-making. This has shifted to a model of community councils made up of elected councillors on a decentralized, geographically oriented committee, rather than a committee that provides a forum for local engagement and participation. Recent community councils have been introduced to offset criticism associated with large-scale amalgamation, rather than to engage residents and promote local community identity.

In addition, the Toronto community councils build on the principle of local autonomy or "subsidiarity" by moving some decision-making to the lowest level. They also provided a way to improve the efficiency of decision-making by removing hundreds of decisions on local items like fence and noise by-laws, permits for café and restaurant patios and street food vendors, etc., that previously had to be considered by city council (Flynn, 2017, 96).

There is mixed opinion on community councils. Sancton (2015) notes that most community councils are not local. For example, the community councils in Toronto have a population base of about 600,000 people. Flynn and Spicer (2017) note that community councils have limited authority and mixed success. The challenge is balancing authority between the community council and city council and clarifying local versus city-wide issues. In 2012/13, a community council was questioned over its involvement in a city-wide issue of whether to permit a casino proposal, which had clear local implications for the East York community in Toronto where it would be located (Flynn, 2017). Critics argued that it moved past its mandate by getting involved in a city-wide issue; the community council countered that the impact of a potential casino was a local issue for that community. Finally, as noted earlier, many community councils include only elected representatives. Flynn (2017) argued that there needs to be more opportunity for direct and deliberate community participation in the local decision-making process. For example, New York has community committees that connect to the community councils and provide a way to channel local issues to the decision makers.

Did You Know?

Community members don't participate in community councils (they are composed of councillors).

Tab: Advisory Committee

Advisory committees present another opportunity to get community input and advice on specific issues related to municipal programs and services. They may include elected representatives as members, but the majority of members will be from the community. Advisory committees may be ongoing – for example, a tree commission has been in place in Fredericton since 1952 – or they may be recently established to get input on a current issue.

Here is a sample of three advisory committees:

- [Vancouver Food Policy Council](#) advises city council and staff on improving food sustainability in Vancouver, including program and policy changes to improve the local food system (Vancouver, 2020).
- [Tree Commission](#) in Fredericton, New Brunswick, was established in 1952 as an advisory body to city council. The commission provides advice and recommendations to the mayor, council, and staff on issues related to the urban forest; acts as a resource for staff; and provides input on, develops, and evaluates municipal policies related to the urban forest. (Fredericton, n.d.)
- [Toronto Youth Cabinet](#) was established as a youth-led advisory body to the City of Toronto in 1998. [Youth Talk](#) [5:21] provides an introduction to the cabinet and its 2014 chair.

Municipal Elections

Provincial and territorial legislation describes the municipal election process, including election dates, terms of office, the process for replacing a vacant councillor seat, and other rules and requirements. Within the legislation, there is some scope for municipalities to adapt the election process to their needs.

A number of key issues are discussed below – all have implications for elected councillors (and sometimes the mayor) as well as for potential candidates for municipal office. Change often results in political winners and losers and municipal councils are reluctant to make change that negatively affects their members' chances of being re-elected.

Tab Panels (expanded):

Tab: Term Limits

Many elected municipal politicians have long tenures. At the beginning of the module, you were asked to look at your mayor; now take a minute to look at the municipal councillors and how long they have been on the municipal council.

There are both drawbacks and benefits of experience and tenure. Continued “election” of incumbents limits new ideas, new leadership, and people from diverse backgrounds from successfully running for municipal positions. “For better or worse, [Mayor Hazel McCallion] presided over Mississauga for 36 years, shutting out a couple of generations of potential leaders in the process” (Hume, 2018).

It can contribute to acclamation, where candidates are acclaimed in their positions without competition and without an election. In Ontario's 2022 municipal elections, 139 heads of council were acclaimed, 32 entire councils of municipalities were acclaimed, and 548 councillors were acclaimed (AMO, n.d.). Moreover, the 2022 numbers were higher than those from 2018, which in turn were higher than 2014, according to the Association of Municipalities of Ontario (AMO, n.d. & McGuigge, 2018).

On the other hand, term limits and requirements for change every two or three terms could reduce the experience base on council and get in the way of planned changes and improvements that takes place over time. It could be considered an unnecessary requirement – if voters don't think their councillor is doing a good job, they could elect a different councillor the next time.

Toronto Councillor Brad Bradford moved motions in 2019 to ask staff to study the question of term limits for Toronto. The motions were defeated by city council – Bradford was not able to get enough support to research the question (Kopun, 2020). What do you think – should elected municipal positions be limited in terms of the number of years that they can serve?

Tab: Ward vs. At-Large Elections

Another issue is whether elections for municipal councillor positions should be held in defined wards or at large. If they are held in wards, how should the size and boundaries of the ward be determined – by geography, communities of interest, diverse interests, or other factors?

Ward-based systems are easy to understand. Local councillors may live in a ward and will always have experience and connections with the ward. Wards need to be similar sized in terms of population base, so that each councillor brings similar weight behind them to council. Quebec has legislation that restricts the population variation between municipal wards to no more than 25% of the average size for municipalities with less than 20,000 people and 15% for municipalities with more than 20,000 people.

A ward-based structure can potentially result in a council that brings narrow, local, and parochial perspectives to municipal and strategic issues. It can limit city building and can lead to conflict between different wards with different interests. As ward size increases there can be less community connection, reducing the positive benefits associated with wards.

Municipal wards can create challenges for rural municipalities because the wards will cover very large geographic areas. If municipalities include some rural and urban wards like London (which was discussed in Module 3) or Ottawa (the conflict between urban and rural councillors was discussed earlier in this module), it can create different challenges for the councillors. Should the municipality have pie-shaped wards that include rural and urban populations or should it have urban wards and rural wards? It seems that our answers to these questions change. In 2003, the Ontario Municipal Board (OMB) overturned Ottawa's ward boundaries and established 3 rural wards. In 2017, the OMB overturned Hamilton's ward structure that had maintained the smaller rural wards in favour of mixed wards.

Vancouver has elected councillors based on an at-large system since 1936. Similar to a mayor, candidates for Vancouver councillor must run a campaign that covers the whole municipality and targets all municipal voters. This can result in many names on the municipal ballot – a challenge with the at-large structure! At-large requires councillors to have an understanding of the municipality as a whole, as well as key issues at the community level. Councillors have a broader and often more diverse base of support and connection. On the other hand, it can be hard for people interested in municipal issues to develop a profile and successfully run for election in an at-large structure, which in turn has implications for the diversity of the elected council. Potential candidates may struggle to raise enough funds and engage volunteers to support a successful at-large campaign. Councillors have less community connection and may not effectively represent those local interests.

There has been ongoing discussion of the at-large structure in Vancouver. They have held five referenda between 1973 and 1996, commissioned a review, and held another referendum in 2004. The results have been in favour of switching to a ward-based system – but for various reasons the change has not happened.

Some municipalities have a mixed structure with some ward and some at-large councillors in an effort to address communities of interest and the broader municipal interest – examples include St. John's, Newfoundland, and Thunder Bay, Ontario.

Tab: Municipal Ward Boundaries and Size

While municipalities have the authority to set their own ward boundaries, these decisions can be challenged or overruled. In Ontario, the Ontario Municipal Board (OMB) had authority to consider ward boundaries but not the actual size of council. As noted in the "Ward vs. At-Large Elections" panel, the OMB used that authority to overturn ward boundaries established in Hamilton and Ottawa.

The OMB was also involved in the Toronto ward boundary process. Supporters of the 25-ward option, one of the options investigated by the consultants hired to undertake the City of Toronto ward boundary review, appealed the city's decision to move to a 47 ward to the OMB. The OMB supported the city decision to proceed with 47 wards, and in 2018 candidates began to file papers to run for councillor roles in the 47 wards.

In 2018, the newly elected Ontario Conservative government overturned Toronto's decision to move to a 47-ward structure and introduced legislation to limit the size of Toronto city council to 25 councillors in wards that aligned with federal and provincial ridings. Toronto appealed the legislation and received a favourable decision from the Ontario Court of Justice. Premier Ford appealed the decision and suggested that he would use the "notwithstanding" clause in the Constitution to override the judge. That wasn't necessary, as in late September, the appeal court granted a "stay," which meant that the original legislation remained in effect and the election proceeded based on 25 wards. The Ontario decision has been appealed to the Supreme Court of Canada by the City of Toronto.

So How Are Municipal Ward Boundaries Set?

A Supreme Court case, referred to as the *Carter* decision, focused on the issue of voter parity and whether votes should have relatively equal weight. Had the challenge been successful, this would have meant that electoral boundaries would need to be re-drawn to include similar population bases, so that a vote in one ward or riding would be of equivalent weight to a vote in another. The court rejected the argument and determined that voter parity was one of a number of factors that needed to be considered in setting electoral boundaries, including geography, community history, community interests, and minority representation (Flynn, 2017).

These criteria are generally used to assess municipal ward boundaries, but this is a controversial process for the communities affected, which may lose their voice, and for the councillor who may lose a base of support or their home ward through such a process.

However, as you can see in the [Canadian Municipal Barometer](#) research findings, which reports on the population per councillor for all municipalities in Canada, the numbers range from less than 2,000 people per councillor to about 600,000 per councillor!

Debates about the right size of municipal council focus on the best size for effective decision-making balanced against the right level of political representation and questions of how many residents a councillor should represent. The answers to these questions are influenced by concerns about cost and efficiency. They are also shaped by one's understanding of the role of local government – emphasis on the municipal service delivery role will lead to a smaller council, while emphasis on local government as a democratic government will put emphasis on representation and will likely result in a larger council.

Municipal Elections Processes

Canada has been talking about the process for electing federal members of parliament for many years. We have a **first past the post** process, where the candidate with the most votes wins, and the party with the most elected members forms the government. But this process has critics, many of whom argue for different processes like proportional representation.

In the same way that there is frustration with the federal, provincial, and territorial processes, there is also frustration at the municipal level. Municipal elections are also based on the first past the post process, but it can lead to strategic voting to prevent someone from winning and concerns about vote splitting that result in the least preferred candidate winning. Interest in alternatives to first past the post is growing, like ranked ballots.

Tab Panels (expanded):

Tab: Ranked Ballot

London, Ontario was the first municipality in Canada to try a ranked ballot. Australia and Ireland use ranked ballots, as well as some U.S. cities, including Minneapolis, Oakland, Portland, and San Francisco. The London initiative allowed voters in the 2018 municipal election to rank up to three candidates for a position (mayor or councillor).

How Does Ranked Voting Work?

The City of London produced [Ranked Choice Voting](#) [0:53] to introduce the concept to voters.

In a nutshell, if no one candidate gets a majority (50%) of first-choice votes, then the lowest ranked (based on votes received) candidate is dropped from the list and the second-choice votes from their supporters get distributed among the remaining candidates. If there still isn't a majority, this will be repeated, with lowest-vote remaining candidate dropped and third round votes distributed to the remaining candidates.

Voter turnout in London was down by 4% from the 2014 municipal election. Of the voters, 47% ranked three candidates; 22% ranked two candidates; and about one-third didn't rank their choices and instead just voted for one candidate. London has 15 wards and the results for 8 of the wards were announced on voting night. The remaining 7 ward results were confirmed the next morning (CBC, 2019). London reported that it took 14 rounds of counting for the leading candidate for mayor to achieve the required number of votes to be declared the winner (CBC, 2019).

London's ranked ballot election was labour- and time-intensive and cost about \$400,000 more than the previous election using first past the post (CBC, 2019). It is likely that some of the time and other costs, related to technology and voter education and outreach, will be reduced in future elections as London can build on what they have in place rather than create it from scratch.

Dave Meslin, an advocate for electoral reform with the group Unlock Democracy Canada, noted, "This is the first fair election that I've seen on Canadian soil in my lifetime" (Edwards, 2019). Proponents argue that ranked ballots focus attention on issues rather than personalities, discourages strategic voting, and encourages candidates from more diverse backgrounds (Edwards, 2019).

Many municipalities watched the London initiative with interest. Cambridge and Kingston held referenda on ranked voting as part of their 2018 municipal election – and although Cambridge didn't have the required 50% voter turnout for a referendum to be binding, the referendum results in both jurisdictions were in favour of shifting to the new system (Edwards, 2018). Toronto has been discussing ranked ballots for a number of years, and in late 2019 voted in favour of studying the process, which is a required step in the process set out in municipal elections legislation before Toronto can vote to switch to ranked ballots.

Interested in Learning More?

Visit [RaBIT](#), the ranked ballot initiative of Toronto.

Tab: Municipal Political Parties

Module 2 introduced different reform periods in local governance. As you remember, the earliest reform movement focused on developing infrastructure to improve conditions in urban communities, improving efficiency and the structures and processes of governance, and planning for healthier communities. Urban reformers wanted to eliminate political influence and control and to minimize politics from local government. They also wanted a more professional staff and public service, which will be explored in Module 5.

Reformers pushed for change in the composition of municipal councils, supporting members with a broad interest in representing and making decisions for the municipality and not based on partisan interests. Political parties became less active at the municipal level.

As we know, with a couple of exceptions, political parties are not formally evident at the municipal level. Where they do exist, they are not the typical federal, provincial, and territorial parties; they tend to be in response to municipal issues and may have right, centre, or left leanings, but they do not have affiliations or connections to the traditional four parties.

Municipal election legislation in Quebec allows for political parties at the municipal level. Vancouver has a history of political parties. Kennedy Stewart (one of the authors of our textbook) was elected mayor in 2018 as an independent on a platform of bringing together the main political parties in Vancouver. Stewart is mayor of a council that includes members from the NPA (Non-Partisan Association), Green, COPE (Committee of Progressive Electors), and OneCity municipal parties. Previously he was an NDP MPP in British Columbia.

The first political parties in Montreal were in 1954 when the Civic Action League ran on an anti-corruption municipal platform. Jean Drapeau, head of the Civic Action League, was elected mayor and served a total of 26 years as mayor (although the terms were not continuous). In 2020, Montreal's municipal council includes Valérie Plante from the Projet Montréal party as mayor, councillors from the Ensemble Montréal party, a number of independent councillors, and councillors from parties that are active at the local or borough level in Montreal.

While Calgary doesn't have formal political parties, research identified two groups or coalitions of five members of council that tended to vote the same way on issues (McCaffrey & Woodfinden, 2017, 9–10). Toronto doesn't have political parties yet many voters can identify small, like-minded coalitions of councillors who tend to support the same issues.

The question of political parties connects to our ongoing discussion of the municipal role. If the role is service delivery, then politics matters less than having elected representatives with skills and experience in operations that help them make decisions regarding services. If the role is political expression and community building, then there will be a greater emphasis on political voice, understanding candidate positions on issues, and an increased attractiveness of political parties.

The absence of formal political parties at the local level puts more pressure on community members to learn about their candidates and local issues. The closure of many local newspapers and the absence of other local media exacerbates this challenge – there are fewer and fewer sources of information about local issues and politics.

Activity

What do you think? Should there be party politics at the municipal level in Canada?

Review the pros and cons below of municipal political parties and contribute to the poll.

Click-n-reveal: [Click here to see a table of pros and cons](#)

Pros	Cons
Ease of identification for voters: • Less voter confusion • May result in higher voter turnout	Restrictive – may be fewer candidate choices.
Enhanced accountability – the political party would be accountable for the party platform.	Accountability would shift from accountability to the local ward and community to accountability to the party.
Municipal councillors already have political affiliations – having parties is a small next step.	May be hard for political candidates early in their career (they may not have solid/clear party affiliation).
Political parties would provide a vehicle for greater and more diverse citizen participation in municipal government.	Political parties may serve to restrict choice if independent candidates are discouraged to run against better resourced party machinery. This may serve to reduce diversity and choice.
Can lead to focus on broader vision (and away from neighbourhood issues).	Balance between local issues and party position may be difficult. Local issues might become less important than the party line.
Could provide greater (party) support and funding to candidates from diverse backgrounds leading to more diverse councils.	Would restrict voter choices to those endorsed/approved by political parties (currently can be many candidates).
May lead to more efficient decision-making – quicker, clearer perspectives/positions on the issues.	Would decrease opportunity for consensus building and the formation of coalitions around municipal issues.
May work well in large and diverse municipalities that have large councils (and number of councillors).	One size doesn't fit all. Would be very challenging to implement in Canada's many small municipalities.
Would include some rules and regulations of the party system and improve transparency.	Would centralize power – less emphasis on working together, more power in the hands of a few.
The municipal governance structure may be streamlined and easier to understand if the decision-making process is guided by the party in power.	There may be implications for the governance structure of municipalities – the identification of "councillors" responsible for particular issue areas and /or the use of non-confidence votes. There may also be implications for the structure of the bureaucracy including the elimination of the central city manager position and a return to the direct reporting of departments to their political minister/councillor.

Should there be municipal political parties in your municipality?

☐ Yes

☐ No

Submit

Representation and Diversity

It is likely that you noticed in your review of your local municipality that the mayor and members of council tend to be male, middle-aged or older, and Caucasian.

Women held 31.5% of elected municipal positions in the largest municipalities in Canada (Canadian Municipal Barometer, 2020) and represented 18% of Canadian mayors in 2013 (McGregor, Moore, Jackson, Bird & Stephenson, 2017, 1). While other research suggests this isn't always the case, the Canadian Municipal Barometer (2020) report notes that female representation was more or less equal in ward, at-large, or mixed councils. Siemiatycki (2011) and other subsequent researchers reported that visible minority groups were underrepresented in the GTA in municipal government and that progress at changing the underrepresentation has been limited. "[V]isible minorities are dramatically underrepresented at city hall. As of 2016, fewer than 7% of council seats across Canada's largest 50 cities were held by visible minorities" (McGregor, Moore, Jackson, Bird & Stephenson, 2017).

Questions of ward versus at-large elections, size of municipal wards, and election processes are key elements in shaping local government. They directly influence who runs for municipal office and whether there is a good or poor likelihood of their election. This, of course, has implications for municipal leadership, decision-making, and the quality of life in our communities. The lack of political parties may also be a barrier to representation. The incumbency effect that was highlighted in the discussion of term limits is also a significant challenge for new candidates and especially for minority and underrepresented candidates.

Mounting a municipal election campaign takes time, resources, and volunteers. Municipalities try to level the playing field through campaign spending limits, guides for potential candidates, and support to nonprofit and charitable groups that develop local leadership and encourage diversity in municipal office. Manitoba and Ontario allow municipalities to provide tax rebates to community members who donate to municipal election campaigns. Some municipalities prohibit union and corporate donations to municipal campaigns and many have a limit on donation amounts that can be accepted from one source. Candidates have to file formal reports on their campaign donations and spending following an election. Nonetheless, it is an uneven field in which incumbents and well-connected candidates have the advantage.

Change to the Structure and Machinery of Municipal Government

As is evident from the discussion in this module and earlier modules, the structure and processes of municipal government are subject to review and change. Following the 1998 amalgamation process that created the new city of Toronto, Toronto commissioned an internal report on governance in 2000. A study was undertaken in 2003, including a scan of governance models, analysis, and options that led to the permanent establishment of four community councils (reduced from the initial six).

In July 2005, the City of Toronto established an advisory panel – Governing Toronto – to review and make recommendations on the process and system of municipal government and to position the City of Toronto in anticipation of the broader powers the city would receive under the *Stronger City of Toronto for a Stronger Ontario Act, 2005*, also known as the *City of Toronto Act*.

Their recommendations focused on a number of priority areas:

1. Strengthen city council's ability to focus on strategic, city-wide priorities
2. Create an executive committee with responsibility for furthering the city's agenda
3. Broaden the mayors' scope of responsibility to reflect the public's expectation of the position and to enable the mayor to lead effectively
4. Ensure standing committees move the city-wide agenda forward
5. Empower community councils
6. Enhance civic engagement and community involvement
7. Retain ward-based representation
8. Better planning processes
9. Budgeting tied to strategic priorities
10. Strengthen commitment to economic development and competitiveness
11. Engendering trust, respect, and civility at city hall

As you can see, many of the recommendations relate to issues presented in this module.

There hasn't been a governance review in Toronto since the 2005 review and the *City of Toronto Act* that followed. Recently the University of Toronto convened a task force to look at the decision-making process and procedures in Toronto. The task force made recommendations grouped in **six areas** for reform related to strategic priorities (Eidleman & Kelcey, 2017):

1. monitoring city agencies,
2. boards and commissions,
3. delegating more authority to community councils,
4. streamlining debate at city council, including limiting council meetings to 12 hours,
5. better engaging the public,
6. and better sharing information and data.

In 2019, Ontario appointed two special advisors to review and advise on reform to the regional government structure in Halton, York, Durham, Peel, Niagara, Waterloo, and in Muskoka District and Oxford County. Many anticipated significant change to the two-tier regional structure and were surprised when, later in 2019, Ontario announced that they would not proceed with regional government reform. Instead, Ontario encouraged those regions with special funding to conduct their own internal reviews to find efficiencies and improve governance and services. They also required that, every two terms of office, regional municipalities conduct reviews of the number of councillors (from the local municipalities) that serve on the regional council.